

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, EVENTS,
COURTS, AND IDENTIFIERS — NOT A REAL FILING**

**PUBLIC COUNTERPART — PROTECTED COMMUNICATIONS AND
WORK PRODUCT ARE REDACTED OR SUMMARIZED WITHOUT
DISCLOSURE**

Public Redacted Petition for Writ of Mandamus

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

Document code: A01

Filed: 2026-04-01

Caption and requested writ

Petitioner asks the Fourth Circuit to vacate only the categorical-waiver and seven-day-production provisions, preserve confidentiality, and remand for item-specific privilege and work-product review.

The petition's proposed form of relief follows the disputed order paragraph by paragraph. It would not direct judgment in the civil action, determine whether any particular employee communication is privileged, or prevent Calder from obtaining billing facts through ordinary discovery. The requested writ instead removes the categorical premise and the deadline that would force disclosure before those questions can be reviewed.

Nature of the original proceeding

This is an original mandamus proceeding under 28 U.S.C. § 1651(a) and Rule 21, arising from district action SYN-EDNC-25-CV-0882 rather than an appeal from final judgment.

Because no final judgment exists in the district case, Cinder Lake does not invoke ordinary appellate jurisdiction. Rule 21 supplies the original-proceeding procedure, and the All Writs Act supplies potential authority; neither source lowers the demanding conditions in *Cheney v. U.S. District Court*, 542 U.S. 367, 380–81 (2004). The petition identifies the trial-court action and judge and names Calder as the real party in interest.

Questions presented

The petition asks whether a general compliance response disclosed any privileged communication, whether categorical subject-matter waiver follows, and whether compelled production before review warrants narrow extraordinary relief.

The first question concerns whether the letter disclosed protected content at all. The second concerns the consequence of the seven-day command before review. The third defines the permissible remedy on remand. Keeping those questions separate prevents a ruling about one memorandum from becoming a general appellate supervision order over every document request in the still-pending retaliation case.

Public waiver statement

The August 21 letter said outside counsel reviewed reported federal-program billing concerns and that Cinder Lake adopted identified remedial measures. It did not quote or summarize legal advice, witness communications, interview content, or counsel's mental impressions.

The letter's public wording is the claimed waiver event, so this page states it without importing the sealed memorandum's contents. A reader can test whether "outside counsel reviewed" and "identified remedial measures" convey a communication on their face. The petition says they convey actions and conclusions only; the sealed counterpart supplies the protected comparison for authorized review without altering the public statement.

Underlying-action boundary

Calder alleges retaliation under 31 U.S.C. § 3730(h). Cinder Lake disputes that claim, but this petition takes no position on its ultimate merits and addresses only the discovery order.

The discovery issue arose inside Calder's federal-question retaliation suit, which fixes Rule 501's federal common-law privilege framework. Whether Calder engaged in protected conduct, whether Cinder Lake knew of it, and why her employment ended remain open questions. The petition uses the action only to explain jurisdiction and the requested materials; it does not offer the privilege ruling as evidence for or against liability.

Investigation chronology

Calder raised billing concerns, Cinder Lake retained outside counsel, and the organization later sent a public compliance response. Public dates and nonprivileged events remain discoverable from original sources.

The chronology separates ordinary business events from counsel's legal work. Calder's reports, claim samples, dates, personnel roles, and later operational changes may be proved from employees and business systems. Counsel's interview questions, confidential exchanges, selection of evidence, and legal assessment are different material. That separation supports a remand for individual rulings rather than the district court's subject-wide shortcut.

Rule 502(d) timing

The January 9 protective order governs later litigation disclosures. Neither side contends it retroactively changes what the pre-suit August 21 letter did or did not reveal.

The January order was entered months after the August letter. Its prospective clawback and nonwaiver terms govern information exchanged during this lawsuit, including material handled under the agreed protocol. It cannot convert a nonprivileged pre-suit announcement into privileged advice, and it cannot retroactively protect an earlier communication that actually disclosed advice. The petition relies on the order only for later handling and preservation.

District discovery dispute

Calder moved to compel identified investigation materials. Nina Ashe received the complete memorandum on January 29 and the complete privilege log on February 5 as offline review copies under protective handling; Cinder Lake later filed public counterparts and provisionally lodged sealed copies.

The protected review exchange let Ashe evaluate the claims but did not deliver the twenty underlying logged communications, drafts, work product, or attachments. The February 26 public motion and notice remained visible, while proposed sealed exhibits were lodged offline. Those access safeguards do not themselves prove privilege; the underlying items still require individual analysis.

Orders and preservation efforts

The March 25 order found categorical subject-matter waiver; reconsideration was denied March 30; and a district stay was denied April 1 while production remained due that day.

Reconsideration gave the district court a direct opportunity to correct the categorical premise. The later stay request focused on preserving confidentiality until review, and its denial left the April 1 production date intact. Those filings matter under *In re Murphy-Brown, LLC*, 907 F.3d 788, 795–97 (4th Cir. 2018), and Cheney’s adequacy and appropriateness inquiries. They do not transform the discovery order into a final judgment.

Irreparable disclosure

The March 25 order would for the first time compel delivery of the twenty underlying logged communications, drafts, work product, and attachments. Ashe's prior protected possession of the complete memorandum and log does not disclose those source items.

The threatened loss is Calder's first compelled access to the underlying communications, full drafts, attachments, and work product beyond the memorandum summaries and log descriptions already held by Ashe under protection. That new adversary knowledge cannot be undone after appeal. Nonprivileged source discovery could continue during a stay of the entire March 25 compelled protected production.

No other adequate means

Ordinary postjudgment review is generally available under *Mohawk Industries, Inc. v. Carpenter*, 558 U.S. 100, 108–11 (2009), but the fixed production deadline would exhaust the confidentiality interest before any final judgment or ordinary appeal.

Mohawk rejects routine collateral appeals from privilege orders and emphasizes ordinary review mechanisms. The petition accepts that baseline. It argues that first compelled production of the twenty underlying items and attachments, after district preservation failed and under a seven-day command, presents the exceptional inadequacy described only persuasively in *In re Fluor Intercontinental, Inc.*, No. 20-1241, 2020 WL 1472076 (4th Cir. Mar. 25, 2020) (unpublished). The argument does not claim every privilege dispute qualifies.

Clear and indisputable right

A shared topic and announced remediation are not themselves a disclosed attorney-client communication. Rule 502(a) begins with an intentional disclosure of privileged information, not a general subject label.

The district court inferred protected substance from the letter's mention of a review and remediation. Cinder Lake answers that neither phrase reveals what any employee told counsel, what counsel told management, or how counsel evaluated legal exposure. A clear-right showing therefore turns on the difference between an event and a communication, not on whether the investigation and the public response concerned the same billing subject.

Appropriateness of relief

Cinder Lake pursued reconsideration and a district stay. A narrowly tailored writ would protect the status quo while leaving lawful discovery and the retaliation merits with the district court.

Appropriateness is discretionary even if the first two Cheney conditions are met. Here, the requested order would restore the district court's ordinary document-specific role, preserve the appellate court's ability to resolve the petition, and allow nonprivileged discovery to proceed. The petition also acknowledges that overbroad relief should be denied, which limits institutional intrusion into management of the civil case.

Rule 502(a) analysis

The public letter supplies no quoted advice, no paraphrase of counsel's conclusion, and no selective use of a privileged communication. The same-subject and fairness inquiries therefore lack the necessary initial disclosure.

Rule 502(a) requires an intentional disclosure of privileged or protected information before related undisclosed material can be swept into subject-matter waiver. The public words disclose that a review occurred and changes followed; they do not disclose the substance of legal communications. Without that first requirement, relatedness and fairness cannot independently create a categorical waiver across the entire investigation file.

Communications and facts

Upjohn Co. v. United States, 449 U.S. 383, 389–97 (1981), protects confidential communications made to obtain legal advice, not the underlying billing facts. Calder may seek facts from employees, ordinary business records, and nonprivileged chronology evidence.

Upjohn leaves Calder free to ask employees what happened and obtain ordinary claim data. Sky Angel U.S., LLC v. Discovery Communications, LLC, 885 F.3d 271, 276–77 (4th Cir. 2018), focuses waiver on information actually revealed. Hawkins v. Stables, 148 F.3d 379, 383–85 (4th Cir. 1998), confirms that Cinder Lake must substantiate each privilege claim, but burden allocation does not fill a missing disclosure.

Fourth Circuit authorities

Sky Angel requires attention to what was actually disclosed; Hawkins places the privilege burden on the proponent but does not create categorical waiver without disclosure. Fluor is cited only as a nonprecedential, narrow seven-day-production analogy.

Fluor is identified as an unpublished, nonprecedential disposition. The petition does not cite it for a general legal rule or treat it as controlling the panel. Its narrow use is comparative: both records involve a public statement of conclusions without the protected communication itself and an order compelling a broad production within seven days. Binding mandamus and waiver authorities do the doctrinal work.

Requested disposition

Vacate the categorical-waiver and complete-production provisions, deny any broader request to bar related discovery, and remand for document-by-document analysis under Rules 26 and 37.

On remand, the district court may test privilege purpose, confidentiality, participants, work-product anticipation, waiver as to a particular communication, and whether factual portions can be separated. Calder may pursue the underlying information from nonprivileged sources. The petition's broader request for protection from all related discovery is expressly severable, allowing the panel to deny that part while correcting the categorical order.

Rule 21 compliance and service

The petition includes the parties, issues, facts, reasons, requested relief, essential-record appendix, respondent service, and certification that a copy was provided to the trial judge.

Rule 21 compliance is shown by the petition package rather than assumed from its prose. The public and sealed petitions state the relief and reasons; the essential-record appendices contain the challenged order and preservation history; the certificates record Calder's service and the trial judge's copy. Those accompanying materials establish the filing requirements without asking the court to infer compliance from advocacy alone.

All people, entities, events, documents, and identifiers in this source are fictional. Nothing here is legal advice or a filing in any real court.